

FREEDOM OF INFORMATION ACT REQUEST

To: U.S. Food and Drug Administration, Division of Freedom of Information
Also submitted to: U.S. Department of Health and Human Services,
Office of the Assistant Secretary for Health (OASH)

From: Jay Puckett, Principal Security Researcher
Obsidian Watch Group
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Date: 28 August 2026

Re: Records concerning alterations to FDA kratom consumer information, and
the 7-OH scheduling record

This is a request under the Freedom of Information Act, 5 U.S.C. Section 552.

RECORDS REQUESTED

For the period 1 January 2025 to the present:

1. All records reflecting any addition, removal, alteration, or proposed alteration to content on FDA web properties concerning kratom, mitragynine, or 7-hydroxymitragynine. This includes the page currently at [fda.gov/news-events/public-health-focus/fda-and-kratom](https://www.fda.gov/news-events/public-health-focus/fda-and-kratom). For each change, please provide the prior and revised content, the date, the person or office requesting it, and the scientific or policy basis relied upon.
2. All communications between FDA or HHS personnel and any Member of Congress, Congressional staff, or official of another federal department concerning kratom consumer-facing content on FDA web properties. This request expressly includes communications with the office of Senator Markwayne Mullin and with the Office of the Secretary of Homeland Security.
3. All records reflecting a decision to decline any requested change to kratom content, including any record of a determination to retain the warning regarding liver toxicity, seizures, and substance use disorder.
4. Concerning the FDA assessment titled "7-Hydroxymitragynine (7-OH): An Assessment of the Scientific Data and Toxicological Concerns Around an Emerging Opioid Threat":
 - a. Records identifying the source intended by the in-text citation "(Kruegel et al., 2019)" appearing in the discussion of 7-OH content by weight. No such reference appears in the document's reference list.
 - b. Records reflecting any review of funding sources, sponsorship, or author conflicts of interest for the literature cited in that assessment, including but not limited to Huestis, Brett, Bothmer and Atallah (2024), *Molecules* 29(5), a study disclosed as funded by Johnson Foods LLC and authored by that company's paid consultants.
 - c. The analytical methodology, sampling basis, and measurement uncertainty

underlying the proposed 0.05 percent by dry weight threshold.

5. Concerning docket HHS-OASH-2026-0232: all records identifying the party or parties who requested the extension of the comment period granted on 26 August 2026 (91 FR, document 2026-17409), and all communications concerning that request.

FEE WAIVER AND EXPEDITED PROCESSING

A fee waiver is requested under 5 U.S.C. Section 552(a)(4)(A)(iii), and expedited processing under 5 U.S.C. Section 552(a)(6)(E). The Department's own comment period on the threshold closes 10 September 2026. Records concerning the evidentiary basis for that threshold, and concerning contemporaneous alterations to consumer safety information about the product category the rule does not reach, are directly material to that open proceeding and to a pending Senate Finance Committee inquiry.

Obsidian Watch Group is an independent investigative organization with no commercial interest in kratom or 7-hydroxymitragynine and no funding from any party to this proceeding. Records will be disseminated publicly at no charge.

FORMAT

Electronic records in native format. Please identify each withholding with the specific exemption claimed and provide a Vaughn index.

Respectfully,

Jay Puckett
Principal Security Researcher
Obsidian Watch Group